



CHAP. 69.—An ACT to amend and re-enact section 9, chapter 15, Code of 1873, in regard to the Construction of Statutes.

Approved February 2, 1875.

Sec. 9, ch. 15,
Code 1873,
amended

Construction of
words "state,"
"United States,"
and "township"
when used in
any statute

1. Be it enacted by the general assembly of Virginia, That the first sub-division of section nine, chapter fifteen of the Code of eighteen hundred and seventy-three, be amended and re-enacted so as to read as follows: First, the word "state," when applied to a part of the United States, shall be construed to extend to and include the District of Columbia and the several territories so-called; and the words "United States," shall be construed to include the said district and territories; and where the word "township" occurs in any statute passed previous to the third day of November, eighteen hundred and seventy-four, the same shall be construed to extend to and include, and to mean the magisterial districts into which the counties are directed to be divided, by amendments to the Constitution of the state adopted by the people on the date last aforesaid.

Commencement

2. This act shall be in force from its passage.

CHAP. 70.—An ACT to provide Artificial Legs or Commutation therefor for William R. Barham.

Approved February 2, 1875.

Preamble

Whereas it is represented to the general assembly that William R. Barham, of Southampton county, a native born citizen of this commonwealth, enlisted in the service of the Confederate States during the war and lost both legs in the service, and now resides and has resided since the close of the war in this state; therefore,

William A. Barham to be furnished with pair of artificial legs, or commutation

1. Be it enacted by the general assembly of Virginia, That the board to contract for and furnish artificial limbs, is hereby authorized and directed to issue to William R. Barham a pair of artificial legs, or commutation therefor, payable upon the warrant of the auditor of public accounts, out of any money not otherwise appropriated, upon production of a certificate from the county judge of Southampton county that the applicant is a resident of his county, and lost his legs while serving in the Confederate army.

Commencement

2. This act shall be in force from its passage.

May, in the year one thousand eight hundred and seventy-five; proceed to register, according to the general registration laws of the state, the names of all the qualified voters within his voting district, entitled to registration therein, who shall apply for registration, and he shall complete such registration within seven days thereafter.

Existing laws
to govern said
registration

2. In making such registration, the said registrar shall, in every particular, be guided and controlled by the general registration laws of the state, and the registration thus made shall have the same force, virtue, and effect, as though the same had been made under the general registration laws of the state.

3. In all other respects, except as herein provided, the duties of the registrar for said district shall be the same as are prescribed by the general registration laws of the state.

Commencement

4. This act shall be in force from its passage.

CHAP. 76.—An ACT to provide for the Division of the Counties of the Commonwealth into Magisterial Districts.

Approved February 5, 1875.

Townships con-
stituted magis-
terial districts,
and to have
same names,
boundaries and
voting places

1. Be it enacted by the general assembly, That the several townships of the counties of this commonwealth, as they existed on the third day of November, eighteen hundred and seventy-four, (the date of the ratification of amendment to the constitution respecting county organization) shall constitute, and are hereby declared to be, the magisterial districts into which the counties are directed to be districted by virtue of said amendment, and the boundary lines, names, and voting places in said townships, as recorded in the clerk's office of the several counties and in the office of the secretary of the commonwealth, shall and are hereby declared to be the boundary lines, names, and voting places of the magisterial districts of the several counties, except as the same may be changed as is hereinafter provided.

How the bound-
aries or number
of districts or
voting places
changed

2. It shall be lawful upon petition of fifty qualified voters of any magisterial district (as organized in the first section of this act) that may be affected thereby, after the same has been posted for at least thirty days at the courthouse of the county, and at the voting place or places of the said magisterial district or districts, for the judge of the county courts of the several counties, by an order entered of record, for good cause, to rearrange, increase or diminish the number of magisterial districts, change the name thereof, establish or change the place or places of holding elections therein; but at or before the trial of said petition, any citizen or citizens of said district shall have the right to enter himself or themselves as defendants thereto, after which said cause shall proceed, in all respects, as other causes on the docket of said court; but after one petition under this section has been re-

jected by said county court, no petition for that purpose shall be again entertained for the space of twelve months from the date of such rejection.

3. If, upon the hearing of the petition mentioned in the second section of this act, the county court should be of opinion that such a change should be made in magisterial districts of the county as to affect the whole county, or upon a petition by a majority of the board of supervisors of said county, it shall be lawful, and it is hereby declared to be the duty of said county court to appoint one discreet man in each magisterial district of said counties to redivide their respective counties into magisterial districts. Said commissioners, a majority of whom may act, shall proceed without delay to lay off and divide their respective counties into compactly located magisterial districts, as nearly equal as may be in territory and population, with a view to the proper sub-division of said magisterial districts into school districts, so that there be not less than three nor more than eleven magisterial districts in any one county, so that after three have been formed, no additional district shall be formed containing less than thirty square miles, and for this purpose said commissioners are authorized: provided, one of said commissioners be not competent to make such survey, to employ a competent surveyor, by whose aid they shall lay off said magisterial districts by metes and bounds, and when, in their opinion, the same is necessary, cause memorial stones to be placed at prominent points on the boundary lines of said magisterial districts. Said commissioners shall establish one or more voting places in each magisterial district for all elections in this commonwealth, in which the voters of said magisterial district shall have the right to vote; and the magisterial districts so laid off, and the voting places so established, shall be the magisterial districts and voting places for said counties. It shall be the duty of said commissioners to make at the earliest practicable day, not more than ten days after laying off said districts and completing said surveys, a written report designating, as accurately as possible, the boundaries of said magisterial districts, and designating the same by appropriate names, as magisterial district of county, and declaring the place or places established by them in each magisterial district for opening polls as hereinbefore provided, together with all other matter deemed pertinent by them, and make return thereof to the clerk's office of their several counties, respectively: provided, that no town or city having a separate organization, or a population of five thousand or more inhabitants, shall be embraced in any of said magisterial districts; and provided further, that before entering upon the discharge of his duties, each commissioner and surveyor shall take an oath or affirmation, before some one authorized by law to administer oaths or affirmations, that he will faithfully and honestly discharge the duties required of him under this act.

County court to appoint commissioners to re-arrange districts

Duties of commissioners

Not less than three nor more than eleven districts

When surveyor to lay off districts

Voting places

Report of commissioners

Certain towns and cities not to be included

Oath of commissioner

Record of report of commissioners

4. It shall be the duty of the clerk of the county court for each county of the commonwealth, wherein there has been a rearrangement of magisterial districts under this act, to enter the same of record at once in the deed book of his office, and furnish the secretary of the commonwealth with an attested copy thereof.

Compensation of commissioners, surveyors, and clerk

5. The commissioner and surveyor employed under the third section of this act, shall each be allowed the sum of three dollars a day for the time necessarily employed in the discharge of his duties under this act, together with all necessary expenses incurred by him, to be paid by the county and levied for upon certificates of the county court; and the clerks of the courts shall, for the duties required of them under this act, be allowed the same fees as are allowed them for recording deeds, which, together with all necessary expenses incurred in carry out this act, shall be paid by the counties, respectively.

How paid

Names of districts, how published

6. It shall be the duty of the keeper of the rolls to publish, with the Session Acts of the general assembly, the names of the several magisterial districts in this state.

Acts in conflict repealed

7. All acts and parts of acts in conflict with this act, be and the same are hereby repealed.

Commencement

8. This act shall be in force from its passage.

CHAP. 77.—An ACT to amend and re-enact section 17 of chapter 173 of the Code of 1873, with reference to Assignment of Breaches in Actions on Annuity or other Bonds.

Approved February 5, 1875.

Section 17, ch. 173, Code of 1873, amended

1. Be it enacted by the general assembly of Virginia, That section seventeen of chapter one hundred and seventy-three of the Code of Virginia (edition of eighteen hundred and seventy-three), be amended and re-enacted so as to read as follows:

How plaintiff may declare in actions on bonds for annuities, or payable in instalments, or in actions for penalty for non-performance of any agreement

§ 17. In an action on an annuity bond, or a bond for money payable by instalments, where there are further payments of the annuity, or further instalments to become due, after the commencement of the action, or in any other action for a penalty for the non-performance of any condition, covenant or agreement, the plaintiff may assign as many breaches as he may think fit, and shall, in his declaration or scire facias, assign the specific breaches for which the action is brought, or the scire facias sued out. The jury empaneled in any such action shall ascertain the damages sustained, or the sum due, by reason of the breaches assigned, and judgment shall be entered for the penalty to be discharged by the payment of what is so ascertained, and such further sums as may be afterwards assessed, or be found due upon a scire facias assigning a further breach; such scire facias may be sued out from time to time, by any person in-

What verdict and judgment shall be rendered

Subsequent proceedings by scire facias

• CHAP. 153.—An ACT to provide for the Election and Qualification of County Officers.

Approved March 8, 1875.

1. Be it enacted by the general assembly of Virginia, That sheriffs, attorneys for the commonwealth, commissioners of the revenue, and county treasurers, shall be chosen by the qualified voters of the respective counties, at the general election on the fourth Thursday in May of the year eighteen hundred and seventy-five, and every fourth year thereafter, and shall hold their offices for the term of four years.

Election of sheriffs, attorneys for the commonwealth, commissioners of revenue, and county treasurers

Terms of office

2. Clerks of the county and circuit courts shall be chosen by the qualified voters of the respective counties, at the general election on the fourth Thursday in May of the year eighteen hundred and seventy-five, and every sixth year thereafter, and shall hold their offices for the term of six years. In counties having less than fifteen thousand inhabitants, the clerk of the county court shall be, ex officio clerk of the circuit court of his county. And the qualification of such clerk before the judge of his county, in term time or vacation, and the execution of the requisite bond shall be, to all intents and purposes, a sufficient qualification; and no other or further bond and qualification shall be required of him, except that the county judge may, at any time, after the service of a rule according to law, upon such clerk, require him to execute a new bond in a larger penalty and with additional sureties: and provided, that for any failure or neglect of duty as clerk of the circuit court, a recovery may be had upon such bond in like manner as if the same had been executed before the circuit court. When the clerk of the county court thus becomes ex officio, clerk of the circuit court, the clerk of the county court only shall be elected. In all counties containing a population of fifteen thousand or more (according to the census of eighteen hundred and seventy), there shall be elected at the next general election, by the qualified voters of such counties, a separate clerk for the circuit court, who shall hold his office for the term of six years, and receive the same compensation as now allowed by law to the clerks of circuit courts: provided, that after the expiration of the first term of six years, all elections for clerks of circuit courts shall be in accordance with the next preceding census.

Election of clerks of county and circuit courts

Terms of office

Clerk of county court to be clerk of circuit court in certain counties

Qualification of clerk in latter case

Bond

Proceeding against, for default

When separate election to be held for clerk of circuit court

His term of office and compensation
 proviso

3. It shall be the duty of each county judge in this state, upon the recommendation of the board of supervisors of his county, at the June term of his court, in the year eighteen hundred and seventy-five, and every fourth year thereafter, to appoint for each county in which he holds his court, one county surveyor and one superintendent of the poor: provided, that the judge may, if he think proper, reject such recommendation and fill said offices by his own appointment.

County surveyor, superintendent of poor, how appointed

Time of entering upon duties

Duties, compensation

Proviso as to vacancies

Election of supervisor, constable, justices of peace, overseer of poor

Terms of office

Provision as to elections of officers not specially provided for by this act

Certain county and district officers required to render service in matter of votes ordered and taxes imposed for public free schools

Notice of elections for school purposes

When terms commence of officers elected or appointed under this act

Writs of election to fill vacancies, and election to fill same

When term of officers elected to fill vacancy shall commence

How such vacancy temporarily filled

Judge of circuit court to fill vacancy temporarily in office of

Said officers shall enter upon the discharge of their duties on the first day of July next after their appointment, and their duties, liabilities, and compensation shall, in all other respects, be the same as now provided by law relating to the offices of county surveyor and superintendent of the poor, respectively: and provided further, that such judge may, either in term time or vacation, by an order entered of record, fill any vacancy occurring in either of said offices.

4. In each magisterial district of the commonwealth there shall be chosen by the qualified voters of the same, respectively, at the general election to be held in May, in the year eighteen hundred and seventy-five, and every second year thereafter, one supervisor, one constable, three justices, and one overseer of the poor, who shall hold their offices for the term of two years.

5. In case the election to any public office, now or hereafter required by law to be filled by the qualified voters of any county, corporation, or voting district, shall not be specially provided for by this or any subsequent act, then an election to such office may be had at the general election held next before the time provided by law for the term of such office to commence.

6. All county and district officers who, under the general laws of the state, are charged with the conduct of elections and the determination of the results thereof, and also all such officers as are charged with the assessment and collection of taxes, are hereby required to render official service in the matter of votes ordered, and taxes imposed for public free school purposes, under such regulations as shall be prescribed by the board of education. But all elections held for public free school purposes, shall be held after notice thereof, given according to the sixth section of the eighth chapter of the Code.

7. All officers, whether elected or appointed under this act, shall enter upon the duties of their respective offices on the first day of July next succeeding their election or appointment, and shall continue to discharge the duties thereof after their terms expire, until their successors shall have qualified.

8. Writs of election to fill vacancies in county, corporation and district offices, shall be issued by the judges of the county or corporation courts of the counties or corporations in which such vacancies occur, so that vacancies in county, corporation and district offices shall be filled at the next election after such vacancies occur; the term of office of all county, corporation and district officers elected under this section, shall commence on the first day of July next succeeding their election: provided, however, that when a vacancy occurs in any county, corporation, or district office, the same shall be temporarily filled by the judge of the county or corporation court in which such vacancy occurs: and provided further, that when a vacancy occurs in the office of circuit court clerk, when the clerk of the county court is not clerk of the circuit court, such vacancy shall be